USCIS Issues New Guidance on EB-1 Eligibility Criteria for Individuals with Extraordinary Ability

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U.S. Citizenship and Immigration Services is issuing policy guidance in our Policy Manual to further clarify the types of evidence that we may evaluate to determine eligibility for extraordinary ability (E11) EB-1 immigrant visa classifications.

This policy guidance:

- Confirms that we consider a person's receipt of team awards under the criterion for lesser nationally or internationally recognized prizes or awards for excellence in the field of endeavor;
- Clarifies that we consider past memberships under the membership criterion;
- Removes language suggesting published material must demonstrate the value of the person's work and contributions to satisfy the published material criterion; and
- Explains that while the dictionary defines an "exhibition" as a public showing not limited to art, the relevant regulation expressly modifies that term with "artistic," such that we will only consider non-artistic exhibitions as part of a properly supported claim of comparable evidence.

This new guidance builds on a previous EB-1 policy update, providing more clarity and transparency to assist petitioners in submitting appropriate evidence that may establish the beneficiary's eligibility.

This policy update is effective immediately and is controlling and supersedes any related prior guidance on the topic. For more information, see the Policy Manual, Volume 6, Part F, Chapter 2.

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